

#	Case Name	
2	2023-01329927 Clayton-Tarvin v. City of Huntington Beach.	Motion for Attorney Fees Petitioner Gina Clayton-Tarvin’s Motion for an Award of Reasonable Attorney’s Fees and Costs is granted in the amount of \$180,260 in attorneys’ fees and \$1,832.50 in costs. The court declines to rule on Respondents’ evidentiary objections because they are not material to the disposition of the motion. Petitioner moves under Government Code section 7923.115, for an award of attorneys’ fees in the lodestar amount of \$278,972.50, enhanced with a 2.0 multiplier to \$557,945; and, for entry of \$1,832.50 in costs, per the costs memorandum filed on 7/17/24 (ROA 125). Respondents do not dispute that Petitioner is the prevailing party for the purpose of an award of reasonable attorneys’ fees and costs under the statute, but they dispute the “reasonableness” of the amount of the attorneys’ fees sought and contend that the lodestar figure should “be adjusted down by 50%” and that the total award should not exceed “\$91,042.82, inclusive of costs.” A court assessing attorney fees begins with a touchstone or lodestar figure, based on the “careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48; see <i>Bernardi v. County of Monterey</i> (2008) 167 Cal.App.4th 1379, 1393 [applying “lodestar” method to a motion for attorneys’ fees under the CPRA].) “In determining hourly rates, the court must look to the ‘prevailing market rates in the relevant community.’ (Citation.) The rates of comparable attorneys in the forum district are usually used. (Citation.) In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. (<i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009, internal citations omitted.) It is within the court’s discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation. (<i>Meister v. Regents of Univ. of California</i> (1998) 67 Cal.App.4th 437, 449.) Where, as here, the fee motion is supported with declarations from counsel and billing records to establish the hours of work, the party opposing the motion can either “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were

		unreasonable.” “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 563–564.) After having reviewed the supporting declarations from counsel, including the billing records, and based on the court’s familiarity with the presentation of this case and the actions that were required, the court finds Petitioner is entitled to a reasonable award of \$180,260 in attorneys’ fees. This amount was reached by the findings summarized in the table, below. <table><tr><td></td><td>G. Pleasants</td><td>B. Murdock</td><td>L. Fink</td></tr><tr><td>Hourly Rate</td><td>\$600</td><td>\$600</td><td>\$700</td></tr><tr><td>Time Reasonably Spent</td><td>246.2</td><td>24.6</td><td>25.4</td></tr><tr><td>Total</td><td>\$147,720</td><td>\$14,760</td><td>\$17,780</td></tr></table> The court does not find that an “across-the-board” cut of 50% is appropriate; however, certain “line items” on the billing statements were deducted for inefficiencies, duplication, and the performance of tasks that are considered clerical (for which Petitioner seeks compensation at an attorney rate). Additionally, the court does not find that a multiplier is warranted, here, because applicable factors (such as the contingency nature of the retainer agreement), were already considered when the court set the hourly rates. (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138.) Petitioner is ordered to give notice of the ruling.		G. Pleasants	B. Murdock	L. Fink	Hourly Rate	\$600	\$600	\$700	Time Reasonably Spent	246.2	24.6	25.4	Total	\$147,720	\$14,760	\$17,780
	G. Pleasants	B. Murdock	L. Fink															
Hourly Rate	\$600	\$600	\$700															
Time Reasonably Spent	246.2	24.6	25.4															
Total	\$147,720	\$14,760	\$17,780															
3	2022-01246149 Ferhat v. Cara	Motion to Set Aside/Vacate Default Before the Court is Defendant Peter Nisson’s Motion to vacate the 2/6/23 default entered against him on Plaintiff Abderrahane Ferhat’s First Amended Complaint (FAC). The Proof of Service filed shows that Mr. Nisson was personally served with the FAC on 11/10/22 at 10:20 am. (ROA 37). Default was entered a few months later on 2/6/23. (ROA 59). Defendant does not challenge service of the FAC.																